



POLICE DEPARTMENT

June 14, 2024

-----X

In the Matter of the Charges and Specifications	:	Case No.
- against -	:	2022-27117
Lieutenant James Lee	:	
Tax Registry No. 930421	:	
Patrol Borough Manhattan South	:	

-----X

At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Jeff S. Adler
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB-APU:

Kenneth Crouch, Esq.
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For Respondent:

James Moschella, Esq.
Karasyk & Moschella, LLP
233 Broadway, Suite 2340
New York, NY 10279

To:
HONORABLE EDWARD A. CABAN
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

COURTESY • PROFESSIONALISM • RESPECT

Website: <http://nyc.gov/nypd>

CHARGES AND SPECIFICATIONS

1. Lieutenant James Lee, on or about June 23, 2021, at approximately 1450 hours, while assigned to PBMS and on duty, in the vicinity of West 41st Street and 6th Avenue, New York County, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, in that he took a recording of individuals on his personal cell phone without police necessity.

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

2. Lieutenant James Lee, on or about June 23, 2021, at approximately 1450 hours, while assigned to PBMS and on duty, in the vicinity of West 41st Street and 6th Avenue, New York County, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, in that he took a recording of [a named complainant] on his personal cell phone without police necessity.

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on May 2, 2024.

Respondent, through his counsel, entered a plea of Not Guilty to the charged misconduct. The Civilian Complaint Review Board introduced into evidence a hearsay statement of a named complainant, video footage he recorded, as well as the Body-Worn Camera footage from several police officers at the scene. Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, I find Respondent Guilty, and recommend a penalty of 20 vacation days.

ANALYSIS

On the afternoon of June 23, 2021, Respondent was the Commanding Officer of the Scooter Squad, tasked with monitoring a protest rally and march scheduled to begin at Bryant Park in Manhattan. The protest was not expected to start for a while, and so with his team

already in place near the intersection of 41st Street and 6th Avenue, Respondent had them take their meal. At approximately 1450 hours, Respondent and several of his officers were sitting inside a police support van eating when two individuals approached the passenger side of the vehicle asking for Respondent's name and shield. One of the individuals had a cell phone in his hand, which he apparently was using to record Respondent, who was sitting in the front passenger seat. Respondent emerged from the van, and his ensuing interaction with the two individuals, as well as a third member of the public ("the complainant"), led to the charges in this case.

The complainant did not appear to testify. Instead, the CCRB introduced into evidence a recorded phone interview of the complainant from July 16, 2021. (CCRB Exs. 1 & 1A) It is well-settled that hearsay evidence is admissible in administrative proceedings, and may form the sole basis for a finding of fact. The hearsay, however, must be carefully evaluated to determine whether it is sufficiently reliable. It is preferable to have testimony from a live witness, where opposing counsel has the opportunity to cross examine, and the court can observe witness demeanor. In the absence of live testimony from the complainant here, this tribunal carefully considered his prior statement, in conjunction with the other evidence presented, including the video footage.

In his interview, the complainant, a self-described "cop watcher," stated that he regularly attends protests in order to document them for the purpose of police accountability. On the date of this incident, he observed two protesters cross the street and approach Respondent, who was in the front passenger seat of a police van, to ask for his name and shield number. Respondent and several other officers exited the van, and Respondent appeared to be using his phone to record the protesters. Respondent and the protesters exchanged words, while the complainant

stood back and recorded the interaction. At one point, Respondent turned his attention to the complainant, whom he believed had a knife in his possession; the complainant explained that it was only a pen, which was hooked onto the side of his pants, and Respondent walked away. The complainant also walked away, before turning back to Respondent to ask him why he had been harassing him. They exchanged additional words before the complainant again walked away. (CCRB Ex. 1A at 4-6, 12-13, 16-21, 27-29)

Video footage recorded by the complainant captures the interaction, as does Body-Worn Camera (“BWC”) footage from several officers at the location. In the complainant’s video (CCRB Ex. 2), the two unnamed protesters can be seen approaching Respondent, as he is seated inside the van. One of them holds his phone up to Respondent as if he is recording. Respondent emerges from the van with a phone in his hand, and appears to be recording the protesters as well. He tells them his name, but one of the protesters repeatedly asks for his badge number, even though Respondent tells him he does not have one. The protester also states, “Bust your move, asshole.” Other police officers exit the van and stand nearby. Respondent tells the protesters that they are harassing him, and an extended conversation ensues where they argue about what constitutes harassment. During much of the exchange, one of the protesters holds his phone in close proximity to Respondent, who in turn continues to hold up his phone to record them. At approximately 6:10 of the video, Respondent’s attention briefly turns toward the complainant. Still recording with his personal phone, Respondent moves close to the complainant, appears to look toward his waist, and asks whether he has a knife; the complainant tells him it is just a pen, and Respondent walks away. The protesters start to cross the street, and the recording ends.

The BWC footage from the officers at the scene (CCRB Exs. 3-5) similarly shows what occurred between Respondent and the individuals, including his interaction with the complainant. One of the videos (CCRB Ex. 4) captures a brief verbal exchange between Respondent and the complainant, which Respondent can be seen recording with his personal phone.

Respondent testified that as he was sitting inside the van eating, he was approached by two “aggressive” protesters who were cursing at him, and sticking their phones in his face. He recognized them as “professional agitators” from past protests, whose goal was to bait officers into a confrontation and then file a lawsuit. He also recognized the complainant as an individual he had seen following and recording protests in the past. Fearing for his safety, Respondent decided that it would be tactically advantageous for him to engage the protesters on the street rather than be trapped inside the van, and so he exited the vehicle. (Tr. 26-30, 37-38)

Once he was outside the van, Respondent wanted to record the interaction in order to document it, but his BWC was attached to his police raid jacket, which was inside a compartment of his scooter across the street. Respondent testified that he had two phones with him inside the van: his Department iPhone and his personal iPhone, which were similar in appearance. He grabbed one of them, which he believed to be his Department phone, and started to record; he realized afterward that he had actually grabbed his personal cell phone instead. According to Respondent, he successfully de-escalated the situation, and the protesters walked away. When he later returned to the command, Respondent confirmed that his colleagues had captured the incident with their BWCs, and he deleted the footage from his personal phone. (Tr. 25, 28, 31-39, 45, 47)

The CCRB has brought two charges against Respondent that stem from this interaction with several members of the public. Specifically, Specification 1 alleges that Respondent improperly used his personal cell phone to record his encounter with the two unnamed protesters, while Specification 2 similarly charges him with using that phone to record the complainant.

It is undisputed that Respondent did use his personal cell phone to record his interaction with the two unnamed protesters, as well as the complainant: Respondent acknowledged that he did so, and the events were captured on video. At issue is not Respondent's decision to record; rather, the issue is *how* Respondent chose to record the interaction – i.e. by using his personal phone as the recording device. Under section 203-06 (17) of the Patrol Guide, in effect at the time of the incident, an MOS is specifically prohibited from “Using any personal electronic/digital device (e.g. cellular phone, camera, etc.) to record video and/or audio or take photographs during any police encounter.” An MOS is instead expected to record such encounters by activating their BWC in the manner prescribed by section 212-123 of the Patrol Guide, after which the video footage becomes the property of the Department, and may not be edited, deleted, or altered by the MOS who recorded it.

This tribunal is mindful that Respondent wanted to record his interaction with the “aggressive protesters” in order to document what transpired; these were “professional agitators” whom he recognized from past protests. However, with his BWC across the street inside his scooter, Respondent exited the van and began recording the protesters using his personal device, contrary to the rules of the Patrol Guide.

To be sure, the rules do not prohibit an MOS from using a personal phone for non-Departmental purposes while on their meal. However, that was not the situation here. At the point where he stepped out of the van to engage the civilians, Respondent was involved in

official Department business. Under such circumstances, any recording he undertook needed to be done with an official Department device. His decision to use his personal phone to record his interaction with the two unnamed protesters, as well as the complainant, ran afoul of the rules set forth in the Patrol Guide. Accordingly, I find Respondent Guilty of both specifications.

PENALTY

In order to determine an appropriate penalty, this tribunal, guided by the Department's Disciplinary System Penalty Guidelines, considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent's employment history also was examined. *See* 38 RCNY § 15-07. Information from Respondent's personnel record that was considered in making this penalty recommendation is contained in an attached memorandum. In nearly 22 years of service, Respondent has been the subject of three disciplinary findings against him, though two of them occurred more than 10 years ago. He also has been awarded seven medals in recognition of his performance, including one Commendation.

Respondent, who was appointed to the Department on July 1, 2002, has been found Guilty of both specifications, for wrongfully using his personal cell phone to record his encounter with protesters. The Disciplinary Guidelines provide for a presumptive penalty of 20 days for this offense. The CCRB recommends that Respondent forfeit 20 vacation days for each count, and that those penalties run concurrently with each other for a total forfeiture of 20 days.

On the one hand, this tribunal is mindful that Respondent's BWC was inside his scooter at the time his encounter with the protesters began. Unfortunately, Respondent then proceeded to record the interaction with his personal cell phone in order to document it. Even if, as he claimed, he mistakenly grabbed his personal phone instead of his Department phone, Respondent

still chose to exit the van and record with that device, while his BWC was across the street. The Patrol Guide strictly forbids an MOS from using a personal device in such a situation. As an experienced lieutenant, Respondent should have known that his decision to do so was improper, and I find no basis to mitigate the penalty here.

On balance, the presumptive penalty of 20 vacation days for each of the two charges will fairly address the misconduct in this case. Respondent's actions were essentially part of one underlying course of conduct, and so concurrent penalties are appropriate. Taking into account the totality of the facts and circumstances in this matter, including Respondent's disciplinary history with the Department, I recommend that Respondent forfeit twenty (20) vacation days for each of the two specifications, with those penalties to run concurrently with each other, for a total forfeiture of twenty (20) vacation days.

Respectfully submitted,



Jeff S. Adler

Assistant Deputy Commissioner Trials

APPROVED


AUG 07 2024
EDWARD A. CABAN
POLICE COMMISSIONER



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

June 13, 2024

Re: Lieutenant James Lee

Disciplinary Case No. 2022-27117

Commissioner Caban:

The above-referenced case was tried on May 2, 2024, by the undersigned, for the New York City Civilian Complaint Review Board (hereinafter “CCRB”), and pursuant to the Memorandum of Understanding between CCRB and the New York City Police Department.

Respondent, Lieutenant James Lee, was charged with the following:

1. Police Lieutenant James Lee, on or about June 23, 2021, at approximately 1450 hours, while assigned to PBMS and on duty, in the vicinity of West 41st Street and 6th Avenue, New York County, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, in that he took a recording of individuals on his personal cell phone without police necessity.

A.G. 304-06, Page 1, Paragraph 1 PROHIBITED CONDUCT

2. Lieutenant James Lee, on or about June 23, 2021, at approximately 1450 hours, while assigned to PBMS and on duty, in the vicinity of West 41st Street and 6th Avenue, New York County, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, in that he took a recording of § 87(2)(b) on his personal cell phone without police necessity.

CCRB has reviewed the May 16, 2024, draft decision of Assistant Deputy Commissioner - Trials Jeff S. Adler (hereinafter, “ADCT”). We respectfully submit the following comments regarding the draft decision pursuant to Fogel v. Board of Education, 48 A.D.2d 925 (2d Dep’t 1975).

The Court found Respondent LT Lee guilty of Specifications One (1) and Two (2). The CCRB agrees with DCT’s finding and penalty recommendation and CCRB respectfully requests that you accept this finding and penalty recommendation.

STATEMENT OF FACTS

CCRB adopts the statements of facts articulated in DCT Adler’s Draft Decision.

ARGUMENT

Lieutenant Lee was found guilty of wrongfully improperly recording the complainant, § 87(2)(b) and other unidentified individuals with his personal cellular device. The Court’s recommended penalty of the forfeiture of twenty (20) vacation days is an appropriate disciplinary penalty for Lieutenant Lee.

Preliminarily, the facts of this encounter provide overwhelming evidence Lieutenant Lee violated patrol guide procedure in his interactions with civilians. It is wholly undisputed, and Lieutenant Lee admitted in open court, that he used his personal phone to record an encounter with the complainant and assembled protesters. There was no justifiable exigency: while Respondent characterized the protesters as aggressive, Lieutenant Lee’s trial testimony failed to articulate any basis for this description beyond the use of profanity and their recording the officers, both constitutionally protected activities (Respondent’s Fogel Memorandum at 2; Tr. 26-27). Crucially, such a characterization is belied by the officers’ and complainant’s video recordings depicting a smiling, pacing, goading Lieutenant Lee, and officers who outnumber and surround the complainant and protesters. See CCRB Ex. 3, 4. Lieutenant Lee’s inchoate suspicions about what the protesters might do, do not constitute fact, nor did such predictions even remotely bear out when the parties peacefully dispersed.

Respondent also asserts that “CCRB has no authority to bring charges for Administrative Guide violations entirely unrelated to their Force, Abuse of Authority, Discourtesy or Offensive Language (“FADO”) jurisdiction”, contending that the charged specifications “do not allege a FADO violation” (Respondent’s Fogel Memorandum at 2). To the contrary, Lieutenant Lee’s conduct constitutes precisely the sort of misconduct encompassed by the CCRB’s power to investigate officers’ abuse of authority.

It is a bedrock principle of administrative law that the Legislature may “confer[] broad power upon the agency to fulfill the policy goals embodied in the statute, leaving it up to the agency itself to promulgate the necessary regulatory details.” Juarez v. N.Y. State Office of Victim Servs., 36 N.Y.3d 485, 492 (2021). Courts afford deference where an agency’s interpretation draws on its experience and expertise, and here, that includes the agency’s definition of abuse of authority. See Matter of Lynch v. NY City Civilian Complaint Review Bd., 206 A.D.3d 558, 560 (1st Dep’t 2022) (“Given the CCRB’s expertise in studying and investigating police disciplinary

matters, we defer to its interpretation of the term ‘abuse of authority,’ unless that definition is irrational, unreasonable, or inconsistent with the governing statute”). As such, CCRB possesses broad authority to define and prosecute alleged abuses of authority within its reasoned calculus. Finally, NYPD Administrative Guide §304-06, the cited specification provision, while concededly a ‘catch-all’ provision, nonetheless charges as prohibited any officer conduct that is “prejudicial to good order, efficiency, or discipline of the Department.” This language necessarily contemplates officers’ abuse of authority; recording the public in an improper manner is one such piece of the puzzle. Notably, Courts have recently considered – and rejected – analogous challenges to the CCRB’s abuse of authority jurisdiction when applied to the improper use of body worn cameras. See Police Benevolent Assn. of the City of NY, Inc. v NY City Civilian Complaint Review Bd., 2024 NY Slip Op 30003[U], *7 (Sup. Ct., NY County 2024) (finding CCRB’s determination that ‘improper use of body worn cameras’ constituted an abuse of authority was rational). Put another way, just as officers may abuse their authority when they fail to properly record civilians during qualifying law enforcement actions, they similarly abuse authority so by improperly recording said actions where a lawful avenue to do so already exists. The CCRB’s categorization of the latter conduct as an abuse of authority is simply the other face of the same coin. Accordingly, the CCRB is permitted to determine that violations of this stripe fall under its jurisdiction as Abuse of Authority, and for the reasons outlined below, it is not irrational for the CCRB to do so.

Lieutenant Lee’s specific conduct in the instant matter, improperly recording civilians via a personal device, constitutes a clear abuse of authority within the ambit of the CCRB’s investigatory power. While body-worn camera footage creates a record of an incident, a record which creates accountability and safeguards the public from misconduct, a personal device’s recording affords no such protection. On the contrary, a personal device recording violates the public’s right to privacy, their right to a clear, objective record of their interaction with an officer, and creates a fungible, elusive digital file easily exploited for improper ends. Thus, officers are required to not abuse their authority, by creating or disseminating an illicit recording which evades public scrutiny. Moreover, officers have a corresponding duty to abide by civilians’ lawful exercise of speech. An officer’s very act of recording with a personal cellular device instead of activating an already-equipped, distinctive body camera, has the potential to chill said speech. The potential for abuse in such an action is self-evident, and arguably, discouraging speech was the exact outcome in this case: when Lieutenant Lee used his iPhone he dispersed protestors poised to join Black Lives Matter protests near Bryant Park that day.

As an aside, while Respondent maintains that “use of personal cellphones by members of the service is a matter that has evolved significantly” since roughly 2020-2021, such a Department prohibition is hardly novel. As early as nearly ten years ago, members of service were warned in Interim Orders about potential personal cell phone use in connection with law enforcement functions.¹ And with good reason; many of the reasons cited by the Department are reflected in the CCRB’s rational determination to classify such misconduct as an abuse of

¹ Thomas Tracy, NYPD Cops Have Been Warned Against Using Their Personal Cell Phones to Record Video Or Take Photos While On Duty (Aug. 17, 2015, 2:30 AM), <https://www.nydailynews.com/2014/08/17/nypd-cops-have-been-warned-against-using-their-personal-cell-phones-to-record-video-or-take-photos-while-on-duty/> (“Cops throughout the department were sternly warned against using their personal cell phones to record video or take pictures while on duty unless authorized by a supervisor, the Daily News has learned [...] ‘Members of the service are reminded that any video or audio created by any device, including a personal device becomes a record for legal purposes and is therefore subject to applicable evidentiary laws,’ NYPD administrators said in an order dated Aug. 7 which prohibits cops from taking photos or video and audio recordings “during any encounter.”)

authority, as detailed above.

Finally, Respondent goes at great lengths to emphasize that Lieutenant Lee's use of his cell phone was unintentional. However, intent is irrelevant in considering whether Lieutenant Lee's actions constituted an abuse of authority. See e.g., DiGiacomo v. NY City Civilian Complaint Review Bd., 2023 NY Slip Op. 01475, 2023 N.Y. App. Div. LEXIS 1502, *2 (1st Dep't 2023) (sustaining an abuse of authority charge for a violation of the Right to Know Act without a requirement that the officer acted with intent or received a request for identification). In any event, body worn camera footage and the complainant's personal recording corroborate the reality that Lieutenant Lee possessed ample time to correct this alleged mistake if it was in fact unintentional, whether by retrieving the scooter jacket containing his body worn camera, or deferring to the numerous other officers that had already activated their cameras to capture the interaction.

CONCLUSION

For all these reasons, CCRB requests that you accept DCT Adler's findings and penalty recommendation and find Lieutenant Lee guilty of Specifications One (1) and Two (2) with a penalty of the forfeiture of twenty (20) vacation days.

Respectfully submitted,



Kenneth Crouch, Esq.
APU Prosecutor
NYC Civilian Complaint Review Board

cc: James Moschella, Esq.
Karasyk & Moschella, LLC
255 Broadway, 32nd Floor
New York, New York 10007
jmoschella@kmattorneys.com